NATIONAL ASSEMBLY OF VIETNAM	SOCIALIST REPUBLIC OF VIETNAM
-------	Independence – Freedom – Happiness

Law No. 13/2022/QH15	*Hanoi, November 14, 2022*

LAW

PREVENTION AND COMBAT AGAINST DOMESTIC VIOLENCE

Pursuant to the Constitution of the Socialist Republic of Vietnam;

The National Assembly of Vietnam hereby promulgates the Law on Prevention and Combat against Domestic Violence.

Chapter I

GENERAL PROVISIONS

Article 1. Scope

This Law provides for the prevention, protection, support, and handling of violations against regulations on prevention and combat against domestic violence; conditions for ensuring prevention and combat against domestic violence; state management and responsibilities of agencies, organizations, families, and individuals in preventing and combating domestic violence.

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For the purpose of this Law, the following terms shall be construed as follows:

1. *Domestic violence* means an intentional act of a family member causing or potentially causing physical, mental, sexual, or economic harm to other family members.

2. *Protective order* is a solution that prohibits the perpetrator from coming close to his/her victim or from using means or tools to commit domestic violence acts.

3. *Shelter* is a location to ensure the safety of domestic violence victims.

4. *Domestic violence education and control* is a process for providing knowledge of and training in skills in behaving, controlling negative emotions and behaviors, or conflict solutions for perpetrators to terminate domestic violence acts.

Article 3. Domestic violence acts

1. Domestic violence acts include:

a) Torturing, ill-treating, beating, and threatening or acts of intentionally violating the health and lives of others;

b) Insulting, nagging, or other acts of intentionally insulting the honor and dignity of others;

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d) Ignoring, deserting, not nurturing, or taking care of family members who are children, pregnant women, women who are raising children under 36 months old, the elderly, disabled people, or people who are unable to take care of themselves; not educating family members who are children;

dd) Discriminating against family members' body, gender, sexuality, and capability;

e) Preventing family members from meeting their family members, having legal, healthy social relationships, or committing acts of isolating and putting constant psychological pressure;

g) Preventing the performance of rights and obligations in the family relations between grandparents and grandchildren; between father, mother, and child; between husband and wife; between brothers and sisters;

h) Disclosing or spreading information on personal life, secrets, and family secrets of other family members to insult their honor and dignity;

i) Forcing sexual intercourse against the will of the wife or husband;

k) Forcing performance of erotic acts; forcing other family members to listen to, view, and read pornographic audio, images, and contents, inciting violence;

l) Imposing forced child marriage, marriage, and divorce or preventing marriage or divorce illegally;

m) Forcing pregnancy, abortion, and fetal sex selection;

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o) Forcing family members to overwork, over-study, or make financial contributions more than they can afford; controlling property and income of family members to create a state of physical, mental dependence, or other aspects;

p) Isolating or holding family members in custody;

q) Forcing family members to leave their legal residence illegally.

2. The acts prescribed in Clause 1 of this Article performed between divorced people; people who live together like husband and wife; people who are parents, stepchildren, brothers, or sisters of the divorced people or people who live together like husband and wife; people who have had a relationship of adoptive parents and adopted children with each other are also identified as domestic violence according to the Government of Vietnam.

Article 4. Principle of prevention and combat against domestic violence

1. Make prevention the main focus, taking the domestic violence victim as the center.

2. Respect and protect legal rights and benefits of relevant people; ensure the best benefits of children; prioritize the protection of legal rights and benefits of domestic violence victims who are pregnant women, women who are raising children under 36 months old, the elderly, disabled people, and people who are unable to take care of themselves; perform gender equality.

3. Focus on activities of disseminating, educating, counseling, and mediating in preventing and combating domestic violence.

4. Promptly detect and prevent and strictly handle violations against laws on prevention and combat against domestic violence as prescribed by law. If the domestic violence victims are children, during the handling process, there must be the participation of the representatives of state management agencies of children or people who are assigned to protect children.

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6. Promote the role and responsibilities of individuals, families, and communities.

7. Perform the responsibility to set an example in preventing and combating domestic violence regarding officials, public employees, and people of the people's armed forces.

Article 5. Prohibited acts in preventing and combating domestic violence

1. Domestic violence acts prescribed in Article 3 of this Law.

2. Inciting, enticing, seducing, assisting, or forcing others to commit domestic violence acts.

3. Using and disseminating information, documents, images, and audio to incite domestic violence.

4. Revenging or threatening vengeance on people who help domestic violence victims and people who detect, notify, denounce, and prevent domestic violence acts.

5. Obstructing the detection, notification, denunciation, prevention, and handling of domestic violence acts.

6. Taking advantage of the prevention and combat against domestic violence to commit illegal acts.

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Article 6. Policies of the State on prevention and combat against domestic violence

1. The State shall allocate the budget for the effective implementation of the prevention and combat against domestic violence, prioritizing ethnic minority areas, mountainous areas, and areas with extremely difficult socio-economic conditions.

2. Encourage agencies, organizations, and individuals to provide aid, sponsorship, gifts, contributions, support, and investment in funds, personnel, physical facilities, and necessities for the prevention and combat against domestic violence; perform international cooperation in preventing and combating domestic violence; develop counseling models to build a happy family, prevent domestic violence, and support domestic violence victims; develop a network of population collaborators engaging in the prevention and combat against domestic violence in the community.

3. Encourage literary and artistic creation on domestic violence prevention and combat; apply science and information technology to the prevention and combat against domestic violence.

4. Praise and commend agencies, organizations, and individuals with achievements in the prevention and combat against domestic violence; issue supporting regulations on compensating for health, life, and property damage for individuals participating in the prevention and combat against domestic violence.

5. Support the advanced training in improving the capability of people who engage in domestic violence prevention and combat.

Article 7. National Action Month for domestic violence prevention and combat

1. The National Action Month for domestic violence prevention and combat is organized in June every year to promote the prevention and combat against domestic violence and honor family values.

2. The Ministry of Culture, Sports and Tourism of Vietnam shall take charge and cooperate with relevant agencies and organizations in directing, guiding, and organizing the implementation of the National Action Month for domestic violence prevention and combat.

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1. International cooperation in domestic violence prevention and combat is performed based on the principle of equality and respect for independence and sovereignty following the law of Vietnam and international laws.

2. Contents of international cooperation in domestic violence prevention and combat include:

a) Participating in international organizations; concluding and performing international treaties and agreements on domestic violence prevention and combat;

b) Developing and performing domestic violence prevention and combat programs, projects, and activities;

c) Sharing information on and experience in domestic violence prevention and combat;

d) Conducting scientific research and providing training for domestic violence prevention and combat personnel.

Article 9. Rights and responsibilities of domestic violence victims

1. Domestic violence victims may:

a) Request competent agencies, organizations, or individuals to protect their health, life, honor, dignity, and legal rights and benefits related to domestic violence acts;

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c) Receive allocation of shelters and confidentiality of such shelters and information on personal life, personal secrets, and family secrets according to this Law and other regulations of relevant laws;

d) Receive medical services, psychological counseling, and training in skills in responding to domestic violence, legal aid, and social support as prescribed by law;

dd) Request perpetrators to remedy consequences and compensate for damage to their health, honor, dignity, and property;

e) Receive information on relevant rights and obligations during the settlement of conflicts and disputes among family members or the handling of domestic violence acts;

g) Complain, denounce, and file a lawsuit against acts that violate domestic violence prevention and combat laws;

h) Other rights according to laws related to domestic violence prevention and combat.

2. Domestic violence victims, guardians, or legal representatives of domestic violence victims shall adequately, accurately, and promptly provide information on domestic violence acts upon requests of competent agencies, organizations, or individuals.

Article 10. Responsibilities of perpetrators

1. Perpetrators shall:

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b) Comply with requests and decisions of competent agencies, organizations, and individuals when such entities apply measures to prevent, protect, support, and handle violations against domestic violence prevention and combat laws;

c) Promptly bring domestic violence victims to medical facilities for emergency aid and treatment. Take care of domestic violence victims unless refused by the victims, their guardians, or legal representatives;

d) Compensate for the damage and remedy consequences for domestic violence victims, people who participate in domestic violence prevention and combat, and other organizations and individuals.

2. If the perpetrators are guardians or legal representatives of domestic violence victims, they are forbidden from performing the rights of guardians and legal representatives according to this Law regarding domestic violence cases they performed.

Article 11. Responsibilities of family members in domestic violence prevention and combat

1. Educate and remind other family members to comply with laws on prevention and combat against domestic violence, laws on marriage and family, laws on gender equality, and other relevant laws.

2. Mediate conflicts and disputes among family members; request perpetrators to end their behaviors; participate in taking care of domestic violence victims.

3. Cooperate with agencies, organizations, individuals, and the residential population in preventing and combating domestic violence.

4. Perform domestic violence prevention and combat measures following this Law and other relevant laws.

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1. Receive commendations upon achievements in domestic violence prevention and combat according to emulation and commendation laws; receive protection and confidentiality of personal information when notifying or denouncing domestic violence acts; receive support from the State to compensate for damage to health, life, and property when participating in domestic violence prevention and combat as prescribed by the Government of Vietnam.

2. Upon detecting domestic violence acts, individuals shall:

a) Provide notifications and denunciations of such behaviors for competent agencies, organizations, or individuals as prescribed in Clause 1 Article 19 of this Law;

b) Participate in protecting and supporting domestic violence victims and domestic violence prevention and combat activities in the community.

Chapter II

DOMESTIC VIOLENCE PREVENTION

Article 13. Purposes and requests in information, communication, and education

1. Information, communication, and education on domestic violence prevention and combat are to improve awareness and orient behaviors, contributing to the elimination of domestic violence.

2. Information, communication, and education on domestic violence prevention and combat shall ensure the following requests:

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b) Being suitable for qualification, age, gender, tradition, culture, ethnicity, religion, and region; focus on children, pregnant women, women raising children under 36 months old, the elderly, disabled people, people who are unable to take care of themselves, and people living in ethnic minority areas, mountainous areas, areas with difficult socio-economic conditions, and areas with extremely difficult socio-economic conditions;

c) Focusing on changing the behaviors of perpetrators, people who regularly have acts of inciting violence, stigma, and discrimination on gender, sexuality, and gender stereotypes;

d) Ensuring gender equality and the protection of honor, dignity, and reputation of domestic violence victims and relevant people;

dd) Ensuring the safety of information on personal life, personal secrets, and family secrets.

Article 14. Contents of information, communication, and education

1. Policies and laws on domestic violence and combat.

2. Human rights, civil rights, and gender equality in families.

3. Fine traditions of Vietnamese people and families; examples of good people and good deeds in building a happy family and preventing and combating domestic violence.

4. Knowledge of marriage and families; behavioral skills in families; skills in protecting and supporting domestic violence victims; skills in preventing and handling domestic violence acts.

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6. Other contents related to domestic violence prevention and combat.

Article 15. Forms of information, communication, and education

Information, communication, and education on domestic violence prevention and combat are performed under the following forms:

1. Thematic conferences, seminars, training, and conversations; direct universalization of laws;

2. Mass media, loudspeakers, internet, billboards, and posters;

3. Integration into programs and activities at educational institutions;

4. Organization of communication emulations and campaigns;

5. Integration into activities of literature, art, and sports, activities of unions, residential communities, and domestic violence prevention and combat models;

6. Other forms in accordance with the law.

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1. Contents of counseling for domestic prevention and combat include:

a) Information, knowledge, and laws on domestic violence prevention and combat, marriage and family, gender, gender quality, and regulations of relevant laws; rights and responsibilities of domestic violence victims and other family members;

b) Behavioral skills in families, organization of family life, construction of a happy family, handling of domestic violence, and care for domestic violence victims.

2. Subjects of domestic violence prevention and combat counseling:

a) Domestic violence victims;

b) Perpetrators;

c) Children, pregnant women, women raising children under 36 months old, the elderly, disabled people, people who are unable to take care of themselves, and people living in ethnic minority areas, mountainous areas, areas with difficult socio-economic conditions, and areas with extremely difficult socio-economic conditions;

d) People who regularly have acts of promoting violence, stigma, and discrimination on gender, sexuality, and gender stereotypes;

dd) People who are going to get married.

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Article 17. Mediation in domestic violence prevention and combat

1. Mediation in domestic violence prevention and combat means that the mediator guides parties to voluntarily settle their conflicts and disputes among family members to prevent the generation or reoccurrence of domestic violence acts.

Mediation in domestic violence prevention and combat does not replace measures to handle perpetrators.

2. Mediation in domestic violence prevention and combat shall satisfy the following principles:

a) Being proactive, timely, and persistent;

b) Respecting the voluntary of parties and the safety of domestic violence victims;

c) Being objective, equal, reasonable, sympathetic, and in accordance with regulations of the law and fine traditions of the Vietnamese nation;

d) Ensuring the confidentiality of information on the personal lives of family members involved in the mediation;

dd) Respecting legal rights and benefits of others; not infringing on the benefits of the State and the community.

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1. Family and clan members shall mediate conflicts and disputes to prevent domestic violence acts from generating or reoccurring.

In necessary cases, it is possible to invite religious dignitaries, village elders, village chiefs, reputable people in the residential community, relatives, people in agencies or organizations of people who have conflicts and disputes, people who are trained or experienced in social work, psychology, and people who are experienced in domestic violence prevention and combat to participate in the mediation.

2. Agencies and organizations shall organize the mediation of conflicts and disputes between people of such agencies and organizations and their family members upon receiving requests from family members; in case of necessity, cooperate with local agencies or organizations in the mediation.

3. Mediation teams at the grassroots level shall mediate conflicts, disputes, and legal violations against domestic violence prevention and combat laws according to the Law on Grassroots Mediation.

4. The People's Committees of communes shall take charge and cooperate with Vietnamese Fatherland Front Committees at the same level and other organizations and individuals in guiding and providing advanced training in skills and knowledge of domestic violence prevention and combat for mediators of mediation teams at the grassroots level.

Chapter III

PROTECTION, SUPPORT, AND HANLDING OF VIOLATIONS IN PREVENTING AND COMBATING DOMESTIC VIOLENCE

Section 1. NOTIFICATION AND HANDLING OF NOTIFICATIONS AND DENUNCIATIONS OF DOMESTIC VIOLENCE ACTS

Article 19. Notifications and denunciations of domestic violence acts

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a) The People's Committees of communes where domestic violence acts occur;

b) Public Security Agencies and Border Guard Stations close to areas where domestic violence acts occur;

c) Educational institutions where domestic violence victims are learners;

d) Village Heads, Heads of Sub-Quarters, Heads of Vietnamese Fatherland Front Departments in residential areas where domestic violence acts occur;

dd) Heads of socio-political organizations of communes where domestic violence acts occur;

e) National hotline for domestic violence prevention and combat.

2. Submission of notifications and denunciations of domestic violence acts to addresses prescribed in Clause 1 of this Clause shall be performed under the following forms:

a) Calls or messages;

b) Letters or applications;

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3. The Government of Vietnam shall stipulate regulations on the national hotline for domestic violence prevention and combat to receive and handle notifications or denunciations of domestic violence acts.

Article 20. Handling of notifications and denunciations of domestic violence acts

1. Public Security Agencies and Border Guard Stations close to areas where domestic violence acts occur shall, upon receiving notifications or denunciations, promptly prevent and handle domestic violence acts within their scope of entitlements while notifying Chairmen of the People's Committees of communes where domestic violence acts occur.

2. Organizations and individuals prescribed in Points c, d, dd, and e Clause 1 Article 19 of this Law shall, upon receiving notifications or denunciations of domestic violence acts, immediately provide notifications for

Chairmen of the People's Committees of communes where domestic violence acts occur and prevent such acts within their capability.

3. Chairmen of the People's Committees of communes shall handle or assign the handling immediately after receiving notifications and denunciations of domestic violence acts or reports on domestic violence acts from organizations and individuals prescribed in Clause 1 and Clause 2 of this Article, except for cases prescribed in Clause 4 of this Article.

If subjects of notifications or denunciations of domestic violence acts are children, pregnant women, women raising children under 36 months old, the elderly, disabled people, and people who are unable to take care of themselves or the domestic violence acts have caused or can potentially endanger the health and life of the victims, Chairmen of the People's Committees of communes shall assign the Police Force of communes, wards, or towns (hereinafter referred to as "Commune-Level Police Force) to handle such matter.

4. In case of notifications or denunciations of criminals, the receipt and handling of notifications and denunciations shall comply with laws on criminal procedures.

5. The procedure for receiving and handling notifications and denunciations of domestic violence acts shall comply with regulations of the Government of Vietnam.

Article 21. The use of audio and images of domestic violence acts

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2. The use of audio and images of domestic violence acts during the handling of domestic violence cases and the publication of them on mass media or the internet shall be agreed on by domestic violence victims or guardians or legal representatives of domestic violence victims, unless otherwise prescribed by law.

Section 2. PREVENTION OF DOMESTIC VIOLENCE ACTS; PROTECTION AND SUPPORT FOR DOMESTIC VIOLENCE VICTIMS AND PEOPLE ENGAGING IN DOMESTIC VIOLENCE PREVENTION AND COMBAT

Article 22. Measures to prevent domestic violence acts and protect and support domestic violence victims

1. Measures to prevent domestic violence acts and protect and support domestic violence victims include:

a) Forcing an end to domestic violence acts;

b) Requesting the person committing the domestic violence act to come to the police office of the commune where the domestic violence act occurs;

c) Imposing protective orders;

d) Arranging shelters and providing support for essential needs;

dd) Providing care and treatment for domestic violence victims;

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g) Providing domestic violence education and control;

h) Providing suggestions and criticizing perpetrators in the residential community;

i) Performing work that serves the community;

k) Performing measures to prevent and ensure the handling of administrative violations following laws on handling administrative violations; measures to prevent and protect victims according to laws on criminal procedures regarding perpetrators.

2. The application of measures prescribed in Points a, b, c, d, dd, e, g, h, and i Clause 1 of this Article to foreigners residing in Vietnam shall comply with the regulations of the Government of Vietnam.

Article 23. Forced termination of domestic violence acts

1. Persons competent to handle domestic violence acts may immediately apply necessary measures according to the law to terminate domestic violence acts.

2. Persons present at the place of domestic violence acts shall, according to their capability and the nature of domestic violence acts, request perpetrators to terminate such acts.

Article 24. Request for perpetrators to come to the Police Office of the commune where the domestic violence acts occur

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a) Domestic violence victims are children, pregnant women, women raising children under 36 months old, the elderly, disabled people, or people who are unable to take care of themselves;

b) There are grounds to believe that domestic violence acts have endangered or may continue to endanger the health and life of domestic violence victims.

2. The request for perpetrators to come to the Police Office of the commune shall be made in writing and witnessed by people in the residential community.

3. In case perpetrators refuse to comply with the request, the Commune-Level Police Force may use combat gears according to the law to bring such people to the Police Office of the commune.

Article 25. Protective orders according to decisions of Chairmen of the People's Committees of communes

1. Chairmen of the People's Committees of communes where domestic violence acts occur shall decide the application of protective order measures, with the validity of each order does not exceed 3 days in the following cases:

a) There are requests from domestic violence victims, guardians, or legal representatives of domestic violence victims or competent agencies, organizations, or individuals regarding domestic violence acts that damage or potentially damage the health or threaten the life of domestic violence victims.

In case of requests from competent agencies, organizations, or individuals, there must be the consent of domestic violence victims, guardians, or legal representatives of domestic violence victims;

b) Domestic violence acts threaten domestic violence victims' life.

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3. Protective order decisions are immediately effective after their issuance and are sent to perpetrators, domestic violence victims, Heads of Commune-Level Polices Forces, Village Heads, and Heads of Sub-Quarters where domestic violence victims reside.

4. Chairmen of the People's Committees of communes that issue decisions on protective orders are competent to cancel such decisions. The cancellation of protective orders is performed in the following cases:

a) There are requests from people prescribed in Point a Clause 1 of this Article;

b) Domestic violence victims, guardians, or legal representatives of domestic violence victims do not agree with decisions on protective orders following Point b Clause 1 of this Article;

c) This measure is considered unnecessary.

5. When applying protective order decisions, domestic violence victims, guardians, or legal representatives of domestic violence victims may select the shelter during the valid period of protective orders.

6. In case perpetrators violate decisions on protective orders, it is allowed to apply custodial measures according to administrative procedures for preventing domestic violence according to regulations of the Government of

Vietnam.

7. If the family has a wedding, funeral, or other special circumstances that the perpetrator has to come into contact with the domestic violence victims, the family shall provide notifications for the person assigned to supervise the implementation of the protective order and commit to preventing the reoccurrence of domestic violence acts.

8. The Government of Vietnam shall elaborate on this Article.

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1. People's Courts that are accepting or handling civil cases between domestic violence victims and perpetrators shall decide the application of protective order measures, with the validity of each order does not exceed 4 months when the following conditions are satisfied:

a) Domestic violence acts damage or potentially damage the health or threaten the life of domestic violence victims.

b) There are requests from domestic violence victims, guardians, or legal representatives of domestic violence victims or competent agencies, organizations, or individuals.

In case of applications from competent agencies, organizations, or individuals, there must be the consent of domestic violence victims, guardians, or legal representatives of domestic violence victims;

2. People's Courts that are accepting or handling civil cases between domestic violence victims and perpetrators shall decide the application of protective order measures on their own, with the validity of each order does not exceed 4 months when it is necessary to protect the life of domestic violence victims.

3. Protective order decisions are immediately effective after their issuance and are sent to perpetrators, domestic violence victims, Chairmen of the People's Committees of communes, Heads of Commune-Level Police Forces, Village Heads, Heads of Sub-Quarters where domestic violence victims reside, and the People's Procuracy at the same level.

4. Courts that issue protective order decisions as prescribed in Clause 1 of this Article shall cancel protective order decisions when receiving applications from domestic violence victims, guardians, or legal representatives of domestic violence victims or competent agencies, organizations, or individuals.

5. Courts that issue protective order decisions as prescribed in Clause 2 of this Article may cancel such decisions if they consider this measure unnecessary.

6. If the family has a wedding, funeral, or other special circumstances that the perpetrator has to come into contact with the domestic violence victims, the family shall provide notifications for the person assigned to supervise the implementation of the protective order and commit to preventing the reoccurrence of domestic violence acts.

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Article 27. Supervision of the implementation of protective order decisions

1. When receiving protective order decisions as prescribed in Article 25 and Article 26 of this Law, Commune-Level Police Forces shall take charge and cooperate with Village Heads, Heads of Sub-Quarters, and relevant organizations at the grassroots level in supervising the implementation of protective order decisions and assigning people to supervise the implementation of protective order decisions.

2. Persons assigned to the supervision shall monitor the implementation of protective order decisions. When detecting perpetrators violating protective order decisions, persons assigned to the supervision have the right to request perpetrators to comply with decisions on protective orders; in case of continuous violations, report the matter to Heads of Commune-Level Police Forces for handling according to the law.

3. In cases where perpetrators are allowed to have contact with domestic violence victims as prescribed in Clause 7 Article 25 and Clause 6 Article 26 of this Law, other family members shall supervise and ensure the prevention of domestic violence acts from reoccurring.

Article 28. Arrangement of shelters and support for essential needs;

1. Domestic violence victims may receive the arrangement of shelters decided by Chairmen of the People's Committees of communes or supported by voluntary agencies, organizations, or individuals.

2. Domestic violence victims may receive support for their essential needs according to laws on social support.

Article 29. Care and treatment of domestic violence victims

1. Medical service facilities shall:

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b) Provide information on damage to the health of domestic violence victims at the request of such persons or competent agencies, organizations, or individuals.

2. While caring for and treating patients, if there are signs indicating that such patients are domestic violence victims, healthcare staff shall immediately report such matters to heads of the medical service facilities.

3. Facilities supporting the prevention and combat against domestic violence prescribed in Points a, c, dd, and e Clause 2 Article 35 of this Law shall provide care for domestic violence victims according to their functions and tasks.

4. Heads of facilities supporting the prevention and combat against domestic violence shall provide notifications of cases of signs of domestic violence regarding people receiving care and treatment for Commune-Level Police Forces of areas where such facilities are located to protect and handle such matters according to the law.

Article 30. Provision of legal aid, psychological counseling, and training in skills in responding to domestic violence

1. Domestic violence victims may receive legal aid services from state legal aid centers or organizations participating in legal aid according to laws on legal aid.

2. Domestic violence victims may receive psychological counseling services and training in skills in responding to domestic violence as prescribed by the Government of Vietnam.

3. The State encourages organizations and individuals to provide free counseling services for domestic violence victims.

Article 31. Domestic violence education and control

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2. Contents of domestic violence education and control:

a) Policies and laws on prevention and combat against domestic violence and measures to handle perpetrators;

b) Identification of domestic violence acts and responsibilities of perpetrators;

c) Skills in behaving, preventing, and handling domestic conflicts and disputes;

d) Knowledge of and skills in controlling acts of domestic violence; relieving stress and pressure;

dd) Other contents.

3. Chairmen of the People's Committees of communes shall decide on and organize the implementation of domestic violence education and control regarding perpetrators that are not subject to criminal prosecution.

Article 32. Feedback and criticism of perpetrators in residential communities

1. Measures to provide feedback and criticism for perpetrators in residential communities shall be taken against people of at least 18 years old in the following cases:

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b) Continuing to commit acts of domestic violence after receiving fines for administrative violations for committing acts of domestic violence.

2. Village Heads and Heads of Sub-Quarters shall take charge and cooperate with Heads of Vietnamese Fatherland Front Departments in residential areas in organizing the feedback and criticism activities of perpetrators in residential communities. The participants of the mentioned activities include:

a) Perpetrators;

b) Representatives of families;

c) Representatives of Commune-Level Police Forces;

d) Representatives of socio-political organizations of communes where there are perpetrators or domestic violence victims who are members;

dd) Other participants invited by Village Heads or Heads of Sub-Quarters.

3. Contents of feedback and criticism include:

a) Feedback and criticism of perpetrators;

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c) Request for perpetrators to commit to not repeating acts of domestic violence.

4. Chairmen of the People's Committees of communes where perpetrators reside shall decide on and organize the implementation of measures to provide feedback and criticism for perpetrators in residential communities

based on the suggestions of persons assigned to handle domestic violence acts.

5. The People's Committees of communes where perpetrators reside shall enable Village Heads and Heads of Sub-Quarters to organize feedback and criticism activities regarding perpetrators in residential communities.

6. In case perpetrators prescribed in Clause 1 of this Article volunteer to perform community services prescribed in Article 33 of this Law, measures to provide feedback and criticism in residential communities shall not be applied.

Article 33. Performance of community services

1. Community services mean small-scale work directly serving the benefits of communities in areas where perpetrators reside, including:

a) Participating in growing and caring for green trees in public areas; fixing and cleaning village streets, neighborhood alleys, streets, alleys, cultural houses, community houses, or other public works;

b) Participating in other work to improve the living environment and scenery of the community.

2. The list of work prescribed in Clause 1 of this Article shall be recognized by Chairmen of the People's Committees of communes based on the discussion and decision of residential communities following laws on grassroots democracy implementation.

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Article 34. Protection of persons engaging in the prevention and combat against domestic violence and persons providing notifications or denunciations of domestic violence

1. Chairmen of the People's Committees of communes shall adopt measures to protect persons directly engaging in the prevention and combat against domestic violence and persons providing notifications or denunciations of domestic violence.

2. Agencies, organizations, and individuals that receive notifications or denunciations of domestic violence shall protect the confidentiality of the personal information of persons providing notifications or denunciations.

Section 3. FACILITIES SUPPORTING THE PREVENTION AND COMBAT AGAINST DOMESTIC VIOLENCE

Article 35. Facilities supporting the prevention and combat against domestic violence

1. Facilities supporting the prevention and combat against domestic violence shall care for, provide counseling services, arrange shelters, and support the essential needs of domestic violence victims and children that such victims are obligated to care for and nurture; provide domestic violence control.

2. Facilities supporting the prevention and combat against domestic violence include:

a) Trusted addresses;

b) Medical service facilities;

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d) State legal aid centers and organizations participating in legal aid;

dd) Other facilities participating in the prevention and combat against domestic violence;

e) Facilities that provide domestic violence and combat support services.

Article 36. Trusted addresses

1. Trusted addresses are reputable and capable organizations and individuals that volunteer to support domestic violence victims.

2. Organizations and individuals prescribed in Clause 1 of this Article shall provide notifications of accepting to be trusted addresses for the People's Committees of communes. The People's Committees of communes shall create a list and disclose trusted addresses in their areas; guide and organize the provision of training for trusted addresses in domestic violence prevention and combat.

3. When receiving domestic violence victims, trusted addresses shall provide notifications for the People's Committees of communes.

The People's Committees of communes shall protect and provide financial support for trusted addresses according to the law.

4. The Vietnamese Fatherland Front Departments of communes, their member organizations, and social organizations shall disseminate and mobilize organizations and individuals to become trusted addresses in residential communities.

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1. Medical service facilities shall care for and treat patients who are domestic violence victims following Clause 1 Article 29 of this Law.

2. Public medical service facilities shall, according to practical conditions, arrange shelters for domestic violence victims for no more than 1 day at the request of domestic violence victims.

Article 38. Social support facilities, state legal aid centers, and organizations participating in legal aid

1. Social support facilities shall provide care and support for other essential needs of domestic violence victims during their stay at the facilities in accordance with the law.

2. State legal aid centers and organizations participating in legal aid shall provide legal aid services for domestic violence victims following laws on legal aid.

Article 39. Other facilities participating in the prevention and combat against domestic violence

1. The State encourages and enables individuals and organizations to participate in the prevention and combat against domestic violence.

2. Other facilities participating in the prevention and combat against domestic violence shall register the content and operating scope with competent state agencies.

3. The Government of Vietnam shall elaborate Clause 2 of this Article.

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1. Facilities that provide domestic violence and combat services established by agencies, organizations, and individuals following the law operating for non-profit purposes to provide one or several of the following services and activities:

a) Domestic violence prevention and combat counseling;

b) Provision of shelters and other essential needs for domestic violence victims;

c) Domestic violence education and control;

d) Provision of health care and psychological disease prevention for domestic violence victims;

dd) Other activities related to prevention and combat against domestic violence.

2. Facilities prescribed in Clause 1 of this Article shall satisfy the following criteria:

a) Heads of the facilities must have full civil act capacity and at least a bachelor's degree, have received specialized training related to services registered for provision, and have not been criminally prosecuted or received fines for acts of domestic violence;

b) Staff who directly participate in the provision of domestic violence prevention and combat services must have graduated from high school or higher, have received advanced training in the knowledge of and skills in preventing and combating domestic violence organized by competent state agencies or facilities permitted by competent state agencies;

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3. Facilities prescribed in Clause 1 of this Article shall register their contents and operating scope with state management agencies of domestic violence prevention and combat.

4. Organizations and individuals that invest in the budget, personnel, and physical facilities to perform services and activities prescribed in Clause 1 of this Article may receive tax incentives, fee incentives, credit incentives, and other incentives as prescribed by the law.

5. The Government of Vietnam shall elaborate on Clause 2 of this Article and stipulate the competence and procedures for issuing and revoking establishment registration certificates of facilities providing domestic violence prevention and combat services.

Section 4. HANDLING OF VIOLATIONS AGAINST LAWS ON DOMESTIC VIOLENCE PREVENTION AND COMBAT

Article 41. Handling of violations against laws on domestic violence prevention and combat

1. Organizations and individuals that violate laws on domestic violence prevention and combat shall receive disciplinary actions, fines, or criminal liability prosecution according to the nature and severity of the violation. If such entities cause damage, provide compensation as prescribed by law.

2. If persons fined for administrative violations against laws on domestic violence prevention and combat are officials, public employees, or persons of the people's armed forces, persons who issue decisions on fines shall provide notifications for heads of agencies, organizations, or units competent to manage the violating persons.

Chapter IV

CONDITIONS FOR THE ASSURANCE OF DOMESTIC VIOLENCE PREVENTION AND COMBAT

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1. Financial sources for domestic violence prevention and combat include:

a) State budget;

b) Aid, sponsorship, gifts, contributions, support, and donations of domestic and foreign organizations and individuals following the law;

c) Other legal financial sources.

2. The state budget for domestic violence prevention and combat shall be allocated in the annual budget estimate of agencies and socio-political organizations with assigned tasks related to domestic violence prevention and combat.

3. The Government of Vietnam shall elaborate on Clause 2 of this Article and contents of expenditures and expenditures on domestic violence prevention and combat activities guaranteed by the state budget annually.

Article 43. Database on domestic violence prevention and combat

1. The database on domestic violence prevention and combat means a collection of information on contents prescribed in Article 46 of this Law.

2. The management and utilization of the database on domestic violence prevention and combat shall be performed as follows:

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b) Information in the database on domestic violence prevention and combat provided by competent agencies shall have legal values;

c) The database on domestic violence prevention and combat is a property of the State and shall have its security and safety strictly ensured. Acts of unauthorized access, vandalism, or falsification of information in the database on domestic violence prevention and combat are strictly prohibited.

d) Organizations and individuals that require information or data on domestic violence prevention and combat may utilize or use such information via the domestic violence prevention and combat information portal at the central or local level. The utilization of information and data on domestic violence prevention and combat shall comply with the law.

3. The Government of Vietnam shall elaborate on this Article.

Article 44. Inter-sectoral cooperation in domestic violence prevention and combat

1. Heads of agencies and organizations shall cooperate with heads of state management agencies of domestic violence prevention and control at the same level in implementing and assessing the implementation results of domestic violence prevention and combat tasks.

2. The inter-sectoral cooperation in domestic violence prevention and combat shall be performed according to the functions, tasks, and entitlements of agencies and organizations, ensuring proactivity and efficiency and upholding the responsibilities of heads of agencies and organizations participating in the inter-sectoral cooperation.

3. Activities of inter-sectoral cooperation in domestic violence prevention and combat at the central and local levels shall be performed according to regulations on inter-sectoral cooperation and operational regulations of the Steering Committee for Domestic Work at all levels stipulated by the Prime Minister of Vietnam.

Article 45. Advanced training in the knowledge and skills in participating in domestic violence prevention and combat

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2. Judges, Jurors, Court Clerks, Procurators, Inspectors, Commune-Level Police Officers, Village Heads, Heads of Sub-Quarters, Heads of Vietnamese Fatherland Front Departments in residential areas, Branch Heads of Unions, and Steering Committees for Domestic Work may receive advanced training in the knowledge and skills in preventing and combating domestic violence and gender equality in domestic violence prevention and combat.

Chapter V

STATE MANAGEMENT AND RESPONSIBILITIES OF AGENCIES AND ORGANIZATIONS OF DOMESTIC VIOLENCE PREVENTION AND COMBAT

Article 46. State management of domestic violence prevention and combat

1. Issue and implement policies, laws, and plans on domestic violence prevention and combat or present them to competent authorities for issuance.

2. Inform, disseminate, universalize, and educate laws on domestic violence prevention and combat.

3. Perform statistical work on domestic violence prevention and combat.

4. Provide training and advanced training for persons performing domestic violence prevention and combat.

5. Conduct scientific research and international cooperation in domestic violence prevention and combat.

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7. Inspect, settle complaints and denunciations, and handle violations against laws on domestic violence prevention and combat.

Article 47. Responsibilities of state management agencies of domestic violence prevention and combat

1. The Government of Vietnam shall unify the state management of domestic violence prevention and combat; submit reports on domestic violence prevention and combat every 2 years or irregularly to the National Assembly of Vietnam.

2. The Ministry of Culture, Sports and Tourism of Vietnam shall take responsibility before the Government of Vietnam for implementing state management of domestic violence prevention and combat and inter-sectoral coordination in domestic violence prevention and combat.

3. Ministries and ministerial agencies shall perform the state management of domestic violence prevention and combat and statistical work on domestic violence prevention and combat under their management within their scope of tasks and entitlements and submit the results to the Ministry of Culture, Sports and Tourism of Vietnam.

4. People's Committees at all levels shall perform the state management of domestic violence prevention and combat at local levels within their scope of entitlements and tasks. Provincial People's Committees shall perform statistical work on domestic violence prevention and combat under their management and submit the results to the Ministry of Culture, Sports and Tourism of Vietnam.

Article 48. Ministry of Culture, Sports and Tourism of Vietnam shall:

1. Promulgate legislative documents, programs, and plans on domestic violence prevention and combat or present them to competent state agencies for issuance.

2. Take charge and cooperate with relevant agencies and organizations in organizing the implementation of legislative documents, programs, and plans on domestic violence prevention and combat; performing inter-sectoral cooperation in domestic violence prevention and combat.

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4. Take charge and cooperate with relevant agencies and organizations in organizing advanced training in knowledge and skills for persons performing domestic violence prevention and combat.

5. Take charge and cooperate in performing statistical work and managing the database on domestic violence prevention and combat.

6. Take charge and cooperate with relevant agencies in inspecting and handling violations against laws on domestic violence prevention and combat.

7. Conduct scientific research and international cooperation in domestic violence prevention and combat.

8. Direct the development, implementation, summary of experience, and extension of domestic violence prevention and combat models.

9. Provide guidelines on integrating contents of domestic violence prevention and combat into the conventions of residential communities.

Article 49. Responsibilities of Ministries, ministerial agencies, and governmental agencies

1. Ministry of Health of Vietnam shall:

a) Promulgate and organize the implementation of regulations on care and treatment for patients who are domestic violence victims at medical service facilities;

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c) Provide advanced training in the knowledge and skills for healthcare staff to provide counseling, care, and treatment for domestic violence victims.

2. Ministry of Labor - War Invalids and Social Affairs of Vietnam shall:

a) Promulgate legislative documents on social support facilities following its entitlements or present them to competent state agencies for issuance; provide guidelines on the receipt and support for domestic violence victims at social support facilities;

b) Direct the integration of contents of domestic violence prevention and combat into programs and plans on gender equality, protection of children, the elderly, and disabled people, vocational education, employment settlement, poverty reduction, and social evil prevention and combat;

c) Provide guidelines for social support facilities to perform statistical work and submit reports on cases where domestic violence victims are received and supported at social support facilities.

3. Ministry of Education and Training of Vietnam shall:

a) Direct the integration of knowledge of domestic violence prevention and combat into programs on education and training in accordance with the requirements of each learning major and level;

b) Provide guidelines for educational institutions on receiving, discovering, and supporting learners who are domestic violence victims.

4. Ministry of Information and Communications of Vietnam shall:

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b) Take charge and cooperate with relevant agencies in detecting and preventing information, images, and data in cyberspace, the press, electronic video games, and publications that incite domestic violence.

5. Ministry of Justice of Vietnam shall:

a) Cooperate in disseminating and educating laws on domestic violence and combat and providing advanced training in the knowledge and skills for mediators and persons providing legal aid in domestic violence prevention and combat;

b) Provide guidelines for State Legal Aid Centers and organizations participating in legal aid to submit statistical reports on cases where domestic violence victims receive legal aid according to laws on legal aid.

6. Ministry of Public Security of Vietnam shall:

a) Promulgate documents guiding the supervision of the implementation of protective order decisions;

b) Direct the integration of knowledge of domestic violence prevention and combat into training programs and advanced training in educational institutions under its management;

c) Take charge and cooperate in providing advanced training in the knowledge and skills for People' Public Security Forces in preventing and combating domestic violence;

d) Provide guidelines on the implementation of statistical work on domestic violence prevention and combat under its management.

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Article 50. Local authorities at all levels shall:

1. Direct and organize the implementation of state management of domestic violence prevention and combat following their competency.

2. Allocate the budget and personnel satisfying the requirements for performing tasks of domestic violence prevention and combat in their areas following this Law.

3. Annually, People's Committees at all levels shall submit reports on domestic violence prevention and combat to People's Councils at the same level.

Article 51. People's Courts and People's Procuracies at all levels shall:

1. Protect the legal rights and benefits of domestic violence victims.

2. Proactively prevent and promptly detect, prevent, and handle acts violating laws on domestic violence prevention and combat.

3. Provide advanced training in the knowledge and skills in preventing and combating domestic violence for Judges, Jurors, Court Clerks, and Procurators.

4. Take charge and cooperate with relevant agencies and organizations in disseminating and educating policies and laws on domestic violence prevention and combat within their scope of tasks and entitlements.

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Article 52. Vietnamese Fatherland Front and its member organizations shall:

1. Perform supervision and social criticism; participate in the supervision and social criticism in the development and implementation of policies and laws on domestic violence prevention and combat.

2. Disseminate, educate, and encourage members and the people to comply with laws on domestic violence prevention and combat and other regulations of relevant laws. Disseminate and educate skills in controlling acts of domestic violence in their agencies, organizations, and the People.

3. Propose necessary measures to relevant state agencies to implement laws on domestic violence prevention and combat and other regulations of relevant laws; participate in domestic violence prevention and combat, care for, support, and protect domestic violence victims.

4. Take charge and cooperate in preventing and combating domestic violence following this Law.

Article 53. Vietnam Women's Union shall:

1. Perform the responsibilities prescribed in Article 52 of this Law.

2. Provide counseling and participate in the mediation on domestic violence prevention and combat at the grassroots level; organize the implementation, connection, and introduction of counseling services, and support for domestic violence victims.

3. Organize activities of livelihood support, job creation, or other support for domestic violence victims.

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5. Cooperate with relevant agencies, organizations, and individuals in protecting and supporting domestic violence victims who are women and children.

6. Cooperate in summarizing and preparing statistical reports on children and women who are domestic violence victims and submit the results to the Ministry of Culture, Sports and Tourism of Vietnam.

Article 54. Social organizations, socio-vocational organizations, and economic organizations shall:

1. Participate in the supervision of the implementation of this Law.

2. Mobilize and support resources to perform domestic violence prevention and combat.

3. Participate in disseminating and mobilizing members and the people to commit to not committing acts of domestic violence and building a happy family.

4. Participate in counseling and mediation in domestic violence prevention and combat, provide support for domestic violence victims, and educate perpetrators.

5. Receive and collect information from members, the people, and society to provide feedback, proposal, and counseling for organizations and individuals regarding the implementation of policies and laws on domestic violence prevention and combat.

Chapter VI

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Article 55. Amendments to Article 135 of the Code of Civil Procedure

Article 135 of the Code of Civil Procedure is amended by Law No. 45/2019/QH14 and Law No. 59/2020/QH14 as follows:

"Article 135. Courts make decisions on application of provisional emergency measures by themselves

Courts shall make decisions on application of provisional emergency measures specified in Clauses 1, 2, 3, 4, 5, and 14 of Article 114 of this Code by themselves in cases where the involved parties do not petition the application of provisional emergency measures.**"**.

Article 56. Entry into force

1. This Law comes into force as of July 1, 2023.

2. The Law on Prevention and Combat against Domestic Violence No. 02/2007/QH12 expires when this Law comes into force./.

This Law was approved by the XV National Assembly of the Socialist Republic of Vietnam at its 4th meeting session on November 14, 2022.

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PRESIDENT OF THE NATIONAL ASSEMBLY OF VIETNAM

Vuong Dinh Hue